

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

MARLON JOHNSON,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE
CHRISTOPHER DESIMONE, Tax No. 958495
LIEUTENANT KEVILLE CAESAR, Tax No. 951578 ,and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 18, 2024

Yours, etc.

David M. Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE CHRISTOPHER DESIMONE, Tax No. 958495
LIEUTENANT KEVILLE CAESAR, Tax No. 951578

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MARLON JOHNSON,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, DETECTIVE
CHRISTOPHER DESIMONE, Tax No. 958495
LIEUTENANT KEVILLE CAESAR, Tax No. 951578 ,and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.

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Plaintiff MARLON JOHNSON, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on June 18, 2021, at approximately 5:00 pm Plaintiff was lawfully present at the funeral home located at 655 Blake Street, Brooklyn, NY 11207 when the defendant NYPD Officers arrived at the funeral home attending his brother's funeral. Plaintiff was seated on a bench consoling his mother when defendants pulled plaintiff off the bench and away from his mother. Defendants unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification. Defendants transported plaintiff to the 75th Precinct against his will, whereat he was unlawfully searched and interrogated by defendants. Defendants then transported plaintiff to the 73rd Precinct against his will, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. On June 19, 2021 plaintiff was arraigned in Kings County Criminal Court and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to several counts of criminal possession of a weapon. Bail was set at arraignment for \$8,000 and plaintiff was released from custody after plaintiff posted bail. On July 9, 2021, plaintiff's bail was increased by the court

to \$250,000, plaintiff could not post bail, he was remanded into New York City Department of Corrections custody and sent to Riker's Island. Plaintiff was unlawfully detained for 15 days on Riker's Island. Plaintiff appeared in Criminal Court on several occasions to address the false criminal charges brought against him. All criminal charges brought against plaintiff were dismissed and sealed in their entirety and terminated in plaintiff's favor on or about March 8, 2022. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes. The false allegations made by the officers formed the basis for the criminal prosecution, without probable cause or legal justification. At no time relevant herein did plaintiff commit a crime, nor did the defendants possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff MARLON JOHNSON is a resident of the state of New York.
3. Defendant DETECTIVE CHRISTOPHER DESIMONE, Tax No. 958495, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE CHRISTOPHER DESIMONE, Tax No. 958495, was at all times relevant herein, assigned to the PSA2 command and is presently assigned to the Emergency Service Squad 1.
5. Defendant DETECTIVE CHRISTOPHER DESIMONE, Tax No. 958495, is being sued in his individual and official capacity.
6. Defendant LIETENANT KEVILLE CAESAR, Tax No. 951578, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant LIEUTENANT KEVILLE CAESAR, Tax No. 951578, was at all times relevant herein, assigned to the PSA2 command and is presently assigned and is presently assigned at the 79th Precinct.
8. Defendant LIEUTENANT KEVILLE CAESAR, Tax No. 951578, Tax No. 958495, is being sued in his individual and official capacity.
9. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incident to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. Plaintiff was falsely arrested and maliciously prosecuted without probable cause on June 18, 2021 for allegedly committing a crime that occurred on June 15, 2021, several days before plaintiff was arrested.

16. Defendant allege that on June 15, 2023, around 6:50 pm he was reviewing Argus camera footage and observed a crowd of males drinking and gambling in front of 315 Sutter Ave, Brooklyn, NY.

17. Defendants responded to the location and approached the crowd, defendant Detective Christopher Desimone falsely alleges that he recognized a male wearing a red sweatshirt to be plaintiff based upon prior interactions they allegedly had.

18. Detective Christopher Desimone had never had interactions with plaintiff prior to June 15, 2021.

19. Detective Christopher Desimone could not identify the individual he claims he saw because he was too far away from the individual to identify him.

20. Defendant Detective Christopher Desimone alleged that the man in the red sweatshirt fled when he observed defendants approaching him.

21. Defendant Detective Christopher Desimone falsely alleges that the man in the red sweatshirt fled the location and threw a loaded revolver to the ground.

22. Defendant Detective Christopher Desimone chased the man with the red sweatshirt, recovered a firearm from the ground, and continued to pursue the man in the red sweatshirt from a distance, but the man ran into a residential apartment building and defendants did not locate the man in the red sweatshirt on June 15, 2021.

23. Defendant Detective Christopher Desimone did not know the identity of the man in the red sweatshirt immediately after he chased him and no defendants or anyone else identified the individual in the red sweatshirt.

24. Upon information and belief defendant Detective Christopher Desimone received pressure for his fellow NYPD officers to identify the man who dropped the gun and Detective Desimone subsequently fabricated allegations that he recognized the man that dropped the firearm to be plaintiff.

25. Defendants did not immediately arrest plaintiff after Detective Desimone falsely identified him as the perpetrator of the crime even though defendants knew where plaintiff lived and saw plaintiff several times before after he was identified and before the defendants arrested him.

26. Instead the defendants waited to falsely arrest plaintiff while he was attending his brother's funeral at a location that was not within the confines of the precinct where the alleged incident involving the man with the red sweatshirt occurred.

27. On June 18, 2021, plaintiff was attended his brother's funeral and memorial service with many friends and family at a funeral home located at 655 Blake Street, Brooklyn, NY 11207.

28. On June 18, 2021, at approximately 5:00 pm Plaintiff was lawfully present at the funeral home located at 655 Blake Street, Brooklyn, NY 11207 when the defendant NYPD Officers arrived at the funeral home.

29. Plaintiff was seated on a bench consoling his mother when defendants unlawfully approached plaintiff, and pulled plaintiff off the bench and away from his mother.

30. Defendants unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification.

31. Defendants transported plaintiff to the 75th Precinct against his will, whereat he was unlawfully searched and interrogated by defendants.

32. Defendants then transported plaintiff to the 73rd Precinct against his will, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

33. Plaintiff learned that he was being arrested for allegedly possessing a firearm on June 15, 2021.

34. As explained above, defendant Detective Christopher Desimone's fabricated allegations that he recognized plaintiff to be the man with a gun on June 15, 2021, was the only evidence used by defendants against plaintiff to purportedly establish probable cause to arrest plaintiff..

35. While plaintiff was at the precinct defendants retrieved plaintiff's DNA from a cigarette defendants gave him, and the defendants tested plaintiff's DNA to determine whether it was on the gun that was recovered..

36. Defendants chemical tests of the DNA revealed that plaintiff's DNA was not present on the gun recovered by the defendants.

37. The defendants lacked probable cause or any objective factual basis to accuse plaintiff of possessing the gun, but the defendants arrested him anyway, and provided false, misleading and incomplete evidence to the District Attorney's office, to justify arresting and charging plaintiff with possession of a firearm.

38. Plaintiff was transported to Kings County Central Booking against his will whereat the unlawful detention continued.

39. On June 19, 2021, plaintiff was arraigned in Kings County Criminal Court and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to several counts of possession of a weapon.

40. Bail was set by the court at arraignment at \$8,000.00.

41. Plaintiff was released from custody after plaintiff hired a bail bondsman to post bail for \$800.

42. Plaintiff retained a private criminal attorney to represent him in this matter and paid the criminal attorney \$15,000.00 to represent him in the underlying criminal case.

43. On July 9, 2021, plaintiff's bail was increased by the court to \$250,000.00, plaintiff could not post bail, and he was remanded into New York City Department of Corrections custody and unlawfully detained on Riker's Island.

44. Plaintiff was unlawfully detained on Riker's Island for 15 days, and he was released from DOC custody on July 23, 2021, by Court Order, dated July 22, 2021.

45. Plaintiff was detained at the OBCC facility on Riker's Island at a time when there were not enough Correction Officers reporting to work due to COVID and the facilities were severely understaffed.

46. Consequently, it took DOC a very long time to process prisoners through the intake areas of the facilities and prisoners were detained in very crowded holding cells in inhumane conditions for many days at a time.

47. Claimant Marlon Johnson was detained in the intake cells at the OBCC facility for the entire first week he was detained on Riker's Island.

48. He was locked in a very small cell made for 1-2 people, but he was detained with approximately 8-9 other prisoners, none of whom had masks to protect them from contracting COVID.

49. The cell he was in had 1 toilet which was overflowing onto the floor where the prisoners were expected to sleep.

50. There were no beds in the intake cell and the prisoners had to lay on the floor, which was covered in urine and feces.

51. \ Due to staffing shortages, the prisoners were only given one or two meals a day and the meals consisted of a couple of slices of bread with jam on it, which is not sufficient to qualify as a meal.

52. \Fights were continuously breaking out in the cell and there were no officers present to stop the fights.

53. Plaintiff's back began to hurt because of the sleeping conditions in the cell. He requested medical attention, but none was provided. Marlon Johnson was detained in extremely dangerous and unsanitary conditions while he was at Riker's Island.

54. At no time while he was detained in the intake area of the OBCC facility Marlon Johnson given an opportunity to shower or clean his body at Riker's Island was claimant.

55. The conditions were so terrible that claimant continued to suffer from anxiety and emotional distress thinking about what occurred at Riker's Island.

56. Plaintiff was maliciously prosecuted based upon false, misleading, and incomplete evidence and allegations provided by the defendant officers.

57. Plaintiff was required to appear in Kings County Criminal Court on approximately 12 additional occasions and endure a felony prosecution that lasted for approximately 9 months.

58. Plaintiff and his attorney met with an attorney at the District Attorney's Office to discuss the fact that he was innocent. At the meeting Marlon Johnson offered to provide his DNA so that he could prove his DNA was not on the gun.

59. The District Attorney's Office affirmatively moved to dismiss and seal the charges brought against plaintiff because it did not have sufficient evidence to prosecute him, and on March 8, 2022, all charges were dismissed and sealed in their entirety.

60. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

61. The false allegations made by the officers formed the basis for the criminal prosecution, without probable cause or legal justification.

62. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

63. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

64. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

65. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

66. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

67. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, falsely arrested, maliciously prosecuted and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

68. Defendants falsely arrested, maliciously prosecuted, and denied him the right to due process, without probable cause or legal justification.

69. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

70. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, questioned, frisked, falsely arrested, maliciously prosecuted, and denied the right to due process violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

71. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficiently punish defendants for the misconduct they previously engaged in.

72. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

73. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

74. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

75. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

76. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

77. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and excessive force used by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

85. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

87. Defendants lacked probable cause to search plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

93. Defendants commenced and continued a criminal proceeding against plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

95. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

96. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 97 with the same force and effect as if fully set forth herein.

99. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

100. Defendants filled out false and misleading police reports and forwarded them to the Kings County Criminal Court.

101. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

102. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. \

SIXTH CAUSE OF ACTION

Failure to Intervene

105. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

107. Defendants failed to intervene to prevent the unlawful conduct described herein.

108. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and denied the right to due process without an objective factual legal basis to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

112. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force,

without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

113. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

114. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

115. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

116. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

117. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

118. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

119. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise

New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

120. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

121. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

122. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff MARLON JOHNSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 18, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 18, 2024

David M. Hazan

DAVID M. HAZAN